

		Here, Plaintiff previously underwent a neurosurgical independent medical examination with Dr. Paul Kaloostian on 9/25/24. Defendants state that Plaintiff's cervical and lumbar spine were evaluated, but her TMJ complaints were not. (He Decl. ¶ 5). Since that time, in November 2025, Plaintiff received a surgical recommendation for a C5-6 total disc arthroplasty. (He Decl. ¶ 6, Ex.1). Plaintiff has designated an orthopedic surgeon, Dr. Jeremy Scott Smith, as an expert, while Defendants currently have no orthopedic surgeon designated (He Decl. ¶ 7). Given the evidence that Plaintiff's condition has progressed, the Court finds that there is good cause to allow an additional 60-90 minute independent medical examination of Plaintiff by Defendant's expert Dr. Kahmann under the parameters set forth in Defendant's motion. In addition to the TMJ complaints that were not previously evaluated, Defendants' expert shall be permitted to examine Plaintiffs' cervical and lumbar spine in order to evaluate her progressing condition and the recommendation for surgery. Plaintiff's motion for a protective order prohibiting Defendant from conducting any additional independent medical examinations of Plaintiff's cervical spine and lumbar spine is accordingly denied as moot based on the above. Defendants shall give notice.
5	Costa vs. FCA US, LLC. 2025-01460593	Motion to Compel Production Plaintiffs Conrad Costa and Monique Costa's Motion to Compel Initial Disclosures Pursuant to CCP § 871.26 and Request for Monetary Sanctions is denied. Plaintiffs move under CCP section 871.26 for an order compelling Defendant to produce all documents required under subdivisions (h)(6) through (h)(10), (h)(12), and (h)(13), and for \$2,500 in monetary sanctions against Defendant and its counsel of record. The Court denies the motion for two reasons. First, CCP section 871.26 does not provide any authority for a motion to compel production for a violation of the statute. In enacting the statute, the Legislature sought to curb discovery motions, not to provide an additional basis for discovery disputes. (See California Bill Analysis, A.B. 1755 Assem., 8/30/2024 ["this bill adopts a set of

		streamlined discovery processes to ensure that the information most relevant to a lemon law case is disclosed early in the litigation process <i>and without the need to argue costly discovery disputes before the court</i>”] [emphasis added].) In order “to ensure that attorneys faithfully adhere to these new discovery rules, the bill <i>proposes sanctions</i> on attorneys who violate the provisions of this bill.” The statute does not say anything about a party bringing a motion to compel production in order to enforce compliance with the statute. Rather, the remedy for non-compliance with the production of initial disclosures is monetary sanctions. (Code Civ. Proc., § 871.26, subd. (j)(4).) For “repeated noncompliance with subdivision (b), (c), or (d), a court may order evidentiary sanctions. (Code Civ. Proc., § 871.26, subd. (j)(4).) Second, Plaintiffs have not shown that the litany of documents that Defendant has purportedly failed to produce are encompassed by section 871.26, subdivisions (h)(6) through (h)(10), (h)(12), and (h)(13). Section 871.26 is generally limited to materials that are “reasonably related to the nonconformities pertaining to the motor vehicle.” Based on a reading of the FAC, it is not clear that Plaintiffs are alleging the “missing” materials are reasonably related to nonconformities in the subject vehicle that Defendant or its agents were unable to conform/repair. The only exception is the “Warranty Administration Manual,” which Defendant offers to produce “subject to the entry of a protective order.” (Opp’n at p. 1.) Plaintiffs are correct that section 871.26 does not require them to enter into a protective order. Nevertheless, monetary sanctions are only warranted if Defendant fails to show good cause. (Code Civ. Proc., § 871.26, subd. (j).) Given the sensitive nature of the manual, the Court finds there was good cause for Defendant to request a stipulation for protective order for the production of the manual. Aside from the lack of a statutory mandate, Plaintiffs have not given any reason why this request is unreasonable. The motion is denied in its entirety. Defendant shall give notice of the ruling.
6	Doe #1 P.M. vs. Roe 1 2022-01299916	Motion for Summary Judgment and/or Adjudication The Court grants Defendant The General Council of the Assemblies of God’s (“General Council) Motion for summary judgment, or alternatively summary adjudication of Plaintiff John Doe #1 P.M.’s First Amended Complaint (FAC).